

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DATED FILED:

-----X
DERREN LOVING

INDEX NO.:

Plaintiffs,

-against-

SUMMONS
Plaintiff designates
New York County as the
Place of Trial based
on Plaintiff's
residence

THE CITY OF NEW YORK, .PO. LIAM CAWLEY &
LT. "JOHN" RULE (the first name being fictitious
as same is unknown)

Defendants

-----X
TO THE ABOVE NAMED DEFENDANTS

You are hereby summoned and required to serve upon
plaintiff's attorneys an answer to the complaint in this action
within twenty (20) days after the service of this summons,
exclusive of the day of service, or within thirty (30) days after
service is complete if this summons is not personally delivered
to you within the State of New York. In case of your failure to
answer, judgment will be taken against you by default for the
relief demanded in the complaint.

Dated: Bronx, New York
March 25, 2015


YALKUT & ISRAEL
Attorneys for Plaintiff
865-B Walton Avenue
Bronx, New York 10451
718-292-2952

Defendants' Name and Address:

CITY OF N.Y. - 100 CHURCH STREET, N.Y., N.Y. 10007

LT. "John" Rule & P.O. Liam Cawley - 6th precinct - 233 West 10th
Street, new York , N.Y. 10004

Notice: The nature of this action is Negligence, personal
injuries False Imprisonment, False Arrest, Negligence Civil
Rights Violations

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you
by default in a sum within the jurisdictional limits of the
Supreme Court and more than the jurisdiction of all inferior
Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DERREN LOVING

Plaintiff(s),
-against-

Index No.:
VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. LIAM CAWLEY
and LT. "JOHN" RULE (the first name being
fictitious as same is unknown).

Defendant(s)
-----X-

Plaintiff, as and for his Verified Complaint, by his attorneys, Yalkut & Israel, alleges the following upon information and belief:

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK (hereinafter referred to as "CITY" was a municipal corporation duly organized and existing pursuant to the laws of the State of New York;
2. A notice of claim was served upon Defendant, CITY within ninety(90) days of the occurrence and/or accrual of the cause of action;
3. More than thirty(30) days have elapsed since presentation of said claim, and defendants have failed to adjust and/or dispose of the claim presented therein;
4. This action is commenced within one year and ninety days of the date of the incident and/or accrual of the cause of action;
5. That at all times hereinafter mentioned, Defendant, CITY, owns THE NEW YORK CITY POLICE DEPARTMENT ("POLICE") as a subsidiary;
6. That at all times hereinafter mentioned, defendant, CITY, maintains, manages and operates "POLICE";

7. That at all times hereinafter mentioned, defendant, CITY, controls "POLICE";
8. That at all times hereinafter mentioned, the Plaintiff resides in the County of Kings, City and State of New York;
9. That at all times herein mentioned, the Defendants, P.O. LIAM CAWLEY ("CAWLEY") and "LT. "JOHN" RULE ("RULE") (the first name being fictitious as same is unknown) were employees of the Defendants acting with the knowledge and within the scope and authority of their employers ;

AS TO INCIDENT ONE -

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

10. The Plaintiff repeats and re-iterate and re-allege each and every allegation contained paragraph 1 through 9 as though fully set forth herein;
11. On May 24, 2014, plaintiff was lawfully at Christopher Street at or near Bleeker Street County of New York, City and State of New York when members of the members of the "POLICE" of defendant, CITY OF NEW YORK, , the Defendants "CAWLEY", "RULE" and other officers approached;
12. Plaintiff was lawfully at said location; the defendants cuffed the defendant RULE asked if the Plaintiff knew a gentleman who had been stopped approximately twelve feet away who apparently was stopped for dropping a liquor bottle on a public thoroughfare. Lt. Rule then asked the Plaintiff for picture identification. As the Plaintiff was removing his identification from his wallet, Rule violently struck the Plaintiff's right hand, propelling the identification airborne, thereafter raising his hand. The Plaintiff, fearing for his life turned to run and was attacked by numerous officers. The Defendant, Cowley placed the Plaintiff in a choke hold causing the Plaintiff not to be able to breathe while the other

officers tackled the Plaintiff to the ground causing him and to injure his shoulder .

13. Plaintiff, was falsely imprisoned at both the scene of the occurrence and continuing thereafter in the police van, at the 6th Precinct, New York, New York, where he was strip searched in the presence of numerous officers, Central Booking and thereafter Criminal Court;
14. As a result of the aforementioned, Plaintiff suffered emotional trauma, feared for his live, personal injuries and other consequential damages;
15. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
16. After seven Court appearances, the criminal action against the Plaintiff was dismissed on motion of the District Attorney
17. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SECOND CAUSE OF ACTION-FALSE ARREST

18. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through "17" herein as if more fully set forth at length:
19. Plaintiff, was, without cause or provocation, falsely arrested;
20. As a result of the foregoing, Plaintiff suffered emotional trauma, feared for his life, personal injuries and sustained other consequential damages;
21. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
22. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of the Supreme Court and in excess of the Jurisdictional limits of all inferior

Courts..

THIRD CAUSE OF ACTION-MALICIOUS PROSECUTION

23. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "22" herein as if more fully set forth at length:
24. Defendants maliciously prosecuted criminal charges against Plaintiff, as a proper investigation would reveal the charges to be false and unfounded, the charges were dismissed;
25. As a result of the foregoing, Plaintiff suffered emotional trauma, fear for his life, and other consequential damages;
26. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
27. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

FOURTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

28. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through "27" herein as if more fully set forth at length:
29. At the aforementioned time and place, plaintiff was negligently treated by various police officers employed by the defendants, including but not limited to "CAWLEY" and "RULE" in that the matter was negligently investigated, and they did not administer the proper care and restraint in the unnecessary manhandling of the Plaintiff;
30. Said police officers were acting within the course and scope of their employment with defendants;

31. As a result of the foregoing, Plaintiff suffered emotional trauma, personal injuries, fear for his life, and other consequential damages;
32. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
33. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FIFTH CAUSE OF ACTION-INVASION OF PRIVACY:

34. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through "33" herein as if more fully set forth at length:
35. The aforementioned occurrence constituted an invasion of the privacy of Plaintiff;
36. As a result of the foregoing, Plaintiff suffered emotional trauma, fear for his life, and other consequential damages;
37. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
38. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

39. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through "38" herein as if more fully set forth at length:
40. As a result of the aforementioned occurrence, Plaintiff was deprived of his civil rights under the Constitution of the State of New York and the Constitution of the United

States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 §1988 and 28 USC § 1343;

41. As a result of the foregoing, Plaintiff suffered emotional trauma, fear for his life, and other consequential damages;
42. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
43. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SEVENTH CAUSE OF ACTION-NEGLIGENCE

44. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "43" herein as if more fully set forth at length:
45. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers including but not limited to the Defendants herein in that a proper investigation would reveal that the charges filed were unfounded.
46. In addition, the Defendant "CITY" and its subsidiary "POLICE" were negligent in their hiring process in that a proper investigation of the police officers involved would have revealed that they were not qualified to fulfill the positions they hold and they would not have been retained;
47. The Defendant "CITY's" subsidiary "POLICE" was negligent in the training and evaluation procedures of the police officers involved herein as proper evaluation would have revealed that they were not qualified to fulfill the positions they hold and they would

not have been retained;

48. As a result of the foregoing, Plaintiff suffered emotional trauma, fear for his life, suffered severe personal injuries, and other consequential damages;
49. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
50. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

EIGHTH CAUSE OF ACTION-BATTERY

51. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "50" herein as if more fully set forth at length.
52. At the aforementioned time and place, Plaintiff was battered by defendants without any provocation on the part of the Plaintiff in that the Defendant "CAWLEY" administered an illegal choke hold rendering the Plaintiff with the inability to breathe
53. As a result of the aforementioned, Plaintiff, suffered emotional trauma, fear for his life, suffered serious and severe personal injuries and other consequential damages
54. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
55. As a result of the foregoing, Plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

AS TO INCIDENT TWO -

NINTH CAUSE OF ACTION-FALSE IMPRISONMENT:

56. The Plaintiff repeats and re-iterate and re-allege each and every allegation contained

paragraph 1 through 55 as though fully set forth herein;

57. On July 19, 2014, plaintiff was lawfully in at Christopher Street at or near West Street County of New York, City and State of New York, conversing with friends when Defendants CAWLEY”,and “RULE” approached;
58. The Defendant “Rule” stated to the Plaintiff “I know you” and without probable cause asked for identification from the Plaintiff;
59. Plaintiff was lawfully at said location; the defendant “Rule” advised the Plaintiff, falsely, that there was a warrant for his arrest.
60. The Defendant “Rule” asked the Plaintiff if the bag under the seat that he was sitting on was his. The Plaintiff stated that the bag was his. The Defendant “Rule” confiscated the bag.
61. Plaintiff, was handcuffed, pat down and falsely imprisoned at both the scene of the occurrence and continuing thereafter in the police van, at the 6th Precinct, New York, New York, where he was strip searched in the presence of numerous officers, Central Booking and thereafter Criminal Court;
62. As a result of the aforementioned, Plaintiff suffered emotional trauma, feared for his life, sustained personal injuries and other consequential damages;
63. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
- 64.. After six Court appearances, the criminal action against the Plaintiff was dismissed on motion of the District Attorney
65. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

TENTH CAUSE OF ACTION-FALSE ARREST

66. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through "65 herein as if more fully set forth at length;
67. Plaintiff, was, without cause or provocation, falsely arrested;
68. As a result of the foregoing, Plaintiff suffered emotional trauma, feared for his life, personal injuries and sustained other consequential damages;
69. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
70. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of the Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

ELEVENTH CAUSE OF ACTION-MALICIOUS PROSECUTION

71. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "70" herein as if more fully set forth at length:
72. Defendants maliciously prosecuted criminal charges against Plaintiff, as a proper investigation would reveal the charges to be false and unfounded, the charges were dismissed;
73. As a result of the foregoing, Plaintiff suffered emotional trauma, feared for his life, and other consequential damages;
74. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
75. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

TWELFTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

76. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through

“75” herein as if more fully set forth at length:

77. At the aforementioned time and place, plaintiff was negligently treated by various police officers employed by the defendants, including but not limited to “CAWLEY” and “RULE” in that the matter was negligently investigated, and they did not administer the proper care and restraint in the unnecessary manhandling of the Plaintiff;
78. Said police officers were acting within the course and scope of their employment with defendants;
79. As a result of the foregoing, Plaintiff suffered emotional trauma, personal injuries, fear for his life, and other consequential damages;
80. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
81. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

THIRTEENTH CAUSE OF ACTION-INVASION OF PRIVACY:

82. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs “1” through “81” herein as if more fully set forth at length:
83. The aforementioned occurrence constituted an invasion of the privacy of Plaintiff;
84. As a result of the foregoing, Plaintiff suffered emotional trauma, feared for his life, sustained personal injuries and other consequential damages;
85. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
86. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FOURTEENTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

87. Plaintiff repeats, reiterate and re-allege the allegations contained in Paragraphs "1" through "86" herein as if more fully set forth at length:
88. As a result of the aforementioned occurrence, Plaintiff was deprived of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 §1988 and 28 USC § 1343;
89. As a result of the foregoing, Plaintiff suffered emotional trauma, feared for his life, sustained personal injuries and other consequential damages;
90. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
91. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FIFTEENTH CAUSE OF ACTION-NEGLIGENCE

92. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "91" herein as if more fully set forth at length:
93. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers including but not limited to the Defendants herein in that a proper investigation would reveal that the charges filed were unfounded.
94. In addition, the Defendant "CITY" and its subsidiary "POLICE" were negligent in their hiring process in that a proper investigation of the police officers involved would have revealed that they were not qualified to fulfill the positions they hold and they would not have been retained;
95. The Defendant "CITY's" subsidiary "POLICE" was negligent in the training and

evaluation procedures of the police officers involved herein as proper evaluation would have revealed that they were not qualified to fulfill the positions they hold and they would not have been retained;

96. As a result of the foregoing, Plaintiff suffered emotional trauma, feared for his life, sustained severe personal injuries, and other consequential damages;
97. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
98. As a result of the foregoing, Plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTEENTH CAUSE OF ACTION - MUNICIPAL LIABILITY

99. This plaintiff repeats and re-alleges the allegations contained in paragraphs "1" through "98" as though fully set forth herein at length;
99. The Defendants "Rule" and "Cawley" knew the Plaintiff to be of the Muslim faith;
100. The defendants "Rule" and "Cawley" caused this Plaintiff to be arrested in the absence of any evidence of criminal wrongdoing. This being the second time that the individual Defendants herein arrested the Plaintiff, notwithstanding their knowledge that said arrest and incarceration was improper and would jeopardize the plaintiff's liberty, well being, safety and constitutional rights;
101. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all of the actual and/or apparent authority to do so;
102. The acts complained of were carried out by the individual defendants in their capacities as police officers and officials pursuant to the customs, policies, practices, usages, procedures, and rules of the defendant "CITY" and "POLICE", all under the supervision of ranking

officers of said department;

103. The aforementioned customs, policies, usages, practices, procedures and rules of the defendant “CITY” and “POLICE” include, but are not limited to the following unconstitutional practices:

- a) fabricating evidence against innocent persons erroneously arrested b) arresting innocent persons wrongfully apprehend ;
- b) arresting persons based on racial profiling, not based on evidence that a crime has been committed;
- c) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;

104. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as evidenced by the following civil rights actions brought against the City of New York:

- **Frank Douglas v City of New York** - United States District Court, Southern District of New York. 03 CV 10313
- **Theodore Richardson v City of New York et al**, United States District Court, Eastern District of New York. 02 CV 3651
- **Phillip Stuart v City of New York**, United States District Court, Southern District of New York. 05 CV 2375
- **Benjamin Taylor v City of New York** United States District Court, Eastern District of New York. 01 CV 5750
- **Angel Vasquez v City of New York**, United States District Court, Eastern

District of New York. 05 CV 3552

- **Alvin Williams v City of New York**, United States District Court, Southern

District of New York. 05 CV 4013

- **Terrence Burton v City of New York**, United States District Court of New York, 06CV 6884

105. The foregoing policies, usages, practices, procedures and rules of the defendant “CITY” and “POLICE” constituted a deliberate indifference to the safety, well being, and constitutional rights of the plaintiff;
106. The foregoing policies, usages, practices, procedures and rules of the defendant “CITY” and “POLICE” were the direct and proximate cause of the constitutional violations suffered by the plaintiff;
107. The foregoing policies, usages, practices, procedures and rules of the defendant “CITY” and “POLICE” were the moving force behind the constitutional violations suffered by the plaintiff;
108. As a result of the foregoing policies, usages, practices, procedures and rules of the defendant “CITY” and “POLICE” this plaintiff was incarcerated unlawfully for one day;
109. The defendants, collectively and individually under color of State Law, were directly and actively involved in violating the constitutional rights of this plaintiff;
110. The defendants, collectively and individually under color of State Law acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of this plaintiff’s constitutional rights;
111. All of the foregoing acts of the defendants deprived this plaintiff of Federal and State protected rights, including but not limited to:

- a) Not to be deprived of liberty without due process of law;
- b) To be free from seizure and arrest not based on probable causes;
- c) To be free from unwarranted and malicious prosecution;
- d) Not to have cruel and inhuman punishment imposed upon him/her;
- e) To receive equal protection under the law.

112 As a result of the foregoing, this plaintiff suffered physical injuries, severe emotional trauma, feared for his life, and sustained severe and other consequential damages;

113. This plaintiff intends to claim punitive damages for all counts;

114. As a result of the foregoing, this plaintiff has been damaged in a sum within the jurisdictional limits of the Supreme and in excess of the jurisdictional limits of all inferior Courts;

SEVENTEENTH CAUSE OF ACTION - CONVERSION

115. This plaintiff repeats and re-alleges the allegations contained in paragraphs "1" through "114" as though fully set forth herein at length;

116. The "bag" depicted in paragraph "64" of the complaint herein, confiscated by the Defendant "Rule" contained the following items of personalty belonging to the Plaintiff:

- a. \$8,563 in cash;
- b. Plaintiff's prescription medication;
- c. 30 individual cigars;
- d. 15 packs of cigarettes;
- e. 2 cans of tuna fish;
- f. one can opener;
- g. one cell phone charger and extension cord.

117. That, upon information and belief, the above items were not vouchered.
118. The items depicted in number 135 of the complaint were not returned to the Plaintiff;
119. Upon information and belief the Defendants converted the property of the Plaintiff to their own use;
120. As a result of the foregoing, the plaintiff has been damaged in a sum within the jurisdictional limits of the Supreme court and in excess of the jurisdictional limits of all inferior Courts.

EIGHTEENTH CAUSE OF ACTION-BATTERY

121. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "120" herein as if more fully set forth at length.
122. At the aforementioned time and place, Plaintiff was battered by defendants without any provocation on the part of the Plaintiff in that the Defendants "RULE" and "CAWLEY"
- .. Placed handcuffs on the Plaintiff with excessive force and tightness;
123. As a result of the aforementioned, Plaintiff, suffered emotional trauma, fear for his life, serious and severe personal injuries and other consequential damages.
124. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
- 125.. As a result of the foregoing, Plaintiff, has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

Dated: Bronx, New York
June 25, 2015

Yours, etc.
Yalkut & Israel Esqs.
865B Walton Avenue
Bronx, New York 10451
(718) 292-2952

STATE OF NEW YORK
COUNTY OF BRONX

Arlen S. Yalkut an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following upon information and belief and with knowledge of the penalties of perjury:

1. Affirmant is a partner with the law firm Yalkut& Israel, attorneys for the Plaintiff in the within action;
2. Affirmant has read the foregoing Summons and Complaint, knows the contents thereof, and same are true to his own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true;
3. Affirmant further states that the reason this affirmation is made by the undersigned and not by the party/parties is that such party/parties do not reside or have a place of business in the county wherein affirmant maintains his offices;
4. The grounds for affirmant's belief as to all matters not stated to be upon affirmant's knowledge are the documents, papers and data contained in the file pertaining to this matter.

Affirmed: Bronx, N.Y.
June 23, 2015,


Arlen S. Yalkut

VERIFICATION

STATE OF NEW YORK)
)
) ss:
COUNTY OF BRONX)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state that I am ARLEN S. YALKUT, a partner in the law firm of YALKUT & ISRAEL, ESQS., the attorneys of record for the Plaintiff(s) in the within action;

I have read the foregoing VERIFIED BILL OF PARTICULARS AND RESPONSE TO
DISCOVERY DEMANDS and know the contents thereof, upon information and belief;

The same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff(s) is that Plaintiff's(s') residence is not in the county where I maintain my office.

I affirm that the foregoing statements are true, upon information and belief, under the penalties of perjury.

Dated: Bronx, New York
July / , 2015


ARLEN S. YALKUT

YALKUT & ISRAEL
Attorneys for Plaintiff
865-B Walton Avenue
Bronx, New York 10451
(718) 292-2952